

End User License Agreement

The following terms and conditions govern all proposals, deliveries, and services related to the use of Smuss Type Kiosk's Typeface(s). These terms override any other agreement unless expressly stated otherwise. By downloading, installing, or using the Typeface(s), the Licensee agrees to be bound by the terms of this EULA. If the Licensee does not accept these terms, they are not permitted to download, install, or use the Typeface(s). The Licensee is advised to thoroughly review this agreement before agreeing to its terms.

1 Grant of License

1.1 The Licensor grants the Licensee a non-exclusive, non-transferable, revocable license to use the Typeface(s) for personal or commercial projects in accordance with the terms of this Agreement.

1.2 The license is granted subject to:

- Payment of applicable license fees
- Adherence to permitted uses
- Compliance with company size restrictions
- Acceptance of all terms and conditions

2 Licensing Tiers

2.1 Company Size-Based Licensing:

- Small (1-2 Employees)
- Medium (3-10 Employees)
- Large (11-25 Employees)
- X-Large (26-50 Employees)
- XX-Large (51-100 Employees)
- Custom (100+ Employees)

2.2 License Requirements:

- License tier is calculated based on the Licensee's total workforce across all divisions and locations.
- Subsidiaries, project vehicles, or shell entities cannot serve as independent Licensees when the parent organization directs or benefits from Font usage. Domain ownership, creative control, and brand value attribution are decisive factors.
- Zero-employee entities cannot be independent Licensees and must contact Smuss Type Kiosk directly to establish appropriate licensing arrangements. Smuss Type Kiosk maintains ultimate discretion in Licensee determination.
- Workforce size must be accurately reported at licensing. Licensees must proactively upgrade their license when workforce growth exceeds their current tier.

2.3 Compliance and Auditing:

- Regular employee count verification
- Mandatory upgrade notifications
- Cooperation with audit requests

2.4 Student

- Valid only for currently enrolled students at accredited educational institutions
- Limited to non-commercial student projects and coursework
- License expires upon graduation or end of enrollment
- Prior student projects may remain published online post-graduation

2.5 Goodwill

- Available for charitable organizations and registered non-profits
- Proof of non-profit status required on inquiry
- For use in organization's direct activities only
- The Licensor may request status verification at any time
- Use outside non-profit scope requires commercial license upgrade, or a custom license agreement
- Misuse may result in termination and retroactive commercial fees

3 Permitted uses

3.1 The Typeface(s) may be used in:

- Graphic design projects, both digital and print
- Branding, logos, and identity materials
- Websites and social media
- Editorial design
- Advertising and promotional materials

3.2 Each license includes:

- Desktop installation rights
- Digital application usage
- Web implementation
- Mobile device access

3.3 For broadcasting, app usage, or custom implementations, a separate license must be obtained by contacting the Licensor.

4 Prohibited uses

4.1 Technical Restrictions

The Licensee may not:

- Distribute, sublicense, or sell the Typeface(s) to third parties
- Modify or create derivative typefaces without prior written permission
- Reverse engineer or decompile the Typeface(s)
- Convert to different font file formats
- Analyze or modify the Typeface(s) using AI/ML technologies
- Use the Typeface(s) to train artificial intelligence systems

- Share the Typeface(s) on public repositories or servers

4.2 Content Restrictions

The Typeface(s) may not be used in projects involving:

- Racist, sexist, homophobic, or transphobic content
- Any form of discriminatory or exclusionary messaging
- War efforts or human rights violations
- Illegal activities
- Political contexts without explicit permission

5 Trial Fonts

5.1 Trial versions are provided solely for:

- Testing and evaluation purposes
- Creating non-commercial test documents
- Internal review and assessment

5.2 Trial restrictions:

- No commercial use
- No public projects
- No distribution or modification

6 Copyright and Ownership

6.1 All rights, including copyright, remain the exclusive property of the Licensor.

6.2 The Licensee acknowledges:

- No transfer of ownership
- All intellectual property rights are retained
- No rights to create derivative works
- No sublicensing permissions

7 Liability Claims

7.1 Font Software is provided “as is” without express or implied warranties regarding performance, compatibility, or fitness for any purpose.

7.2 Technical Support:

- Limited to original, unmodified Font Software only
- No support provided for modified versions
- Support inquiries should be directed to type@smuss.studio

7.3 Warranty Claims:

- License Owner must notify Licensor within 30 days of purchase if Font Software is defective
- Licensor will attempt to resolve technical issues within 30 days
- If issues cannot be resolved, License Owner may request a refund
- Upon refund, all usage rights terminate immediately
- Licensor's maximum liability shall never exceed the original license fee paid by the License Owner

8 Termination

8.1 Licensor may terminate the Agreement if:

- Any term is breached
- License fees is unpaid
- Company size limits are exceeded

8.2 Upon termination:

- All usage must cease immediately
- All copies must be destroyed
- Written confirmation required
- No refunds will be issued

9 Enforcement

9.1 In case of unauthorized use:

- Retroactive licensing fees for the actual tier
- Additional penalty fee of 200% of the license fee may be charged
- Legal costs may be recovered

9.2 The Licensor reserves the right to:

- Conduct usage audits
- Request documentation
- Verify compliance
- Take legal action if necessary

Last Updated: January, 2025

